



**Bureau of Experts at the Council of Ministers
Official Translation Department**

Statute of the Communications, Space, and Technology Commission

Council of Ministers Resolution No. 74
May 28, 2001

Translation of Saudi Laws

NOTES:

1. This translation is provided for guidance. The governing text is the Arabic text.
2. The translation of Saudi laws takes the following into consideration:
 - Words used in the singular form include the plural and vice versa.
 - Words used in the masculine form include the feminine.
 - Words used in the present tense include the present as well as the future.
 - The word “person” or “persons” and their related pronouns (he, his, him, they, their, them, and who) refer to a natural and legal person.
3. Amendments to this Statute are provided in the Appendix.

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Statute of the Communications, Space, and Technology Commission*

Article 1

The following words and phrases shall have the meanings assigned thereto, unless the context requires otherwise:

Law: Telecommunications Law.

Statute: Statute of the Communications, Space, and Technology Commission.

Ministry: Ministry of Post, Telegraph, and Telephone.

Minister: Minister of Post, Telegraph, and Telephone.

Commission: The Communications, Space, and Technology Commission.

Board: Board of Directors of the Communications, Space, and Technology Commission.

Governor: Governor of the Communications, Space, and Technology Commission.

Member: Member of the Board of Directors of the Communications, Space, and Technology Commission.

Article 2

Pursuant to this Statute, a commission named the Saudi Communications Commission shall be established and shall report to the Minister. The Commission shall have a legal personality and financial and administrative independence to achieve its purposes. Its headquarters shall be in the city of Riyadh and it may establish branches or offices inside the Kingdom.

Article 3

The Commission shall regulate the telecommunications sector to ensure the provision of advanced and reliable telecommunications services throughout the Kingdom by companies licensed in accordance with the Law. For such purpose, the Commission may:

- a) issue necessary licenses in accordance with the Law, its Implementing Regulations, and this Statute;
- b) verify compliance with the terms and conditions of issued licenses, and propose conditions related to Universal Service and Universal Access;
- c) execute approved policies, plans, and programs to develop the telecommunications sector and set relevant procedures therefor;
- d) seek to achieve a systematic expansion of telecommunications infrastructure and services and provide users access thereto in an effective and reliable manner;
- e) encourage reliance on market forces for the provision of telecommunications services;
- f) prepare clear, fair, effective, and sufficient implementing regulations for the Law;
- g) promote investment in telecommunications services and equipment and promote the provision of good quality, reliable, and affordable telecommunications services in all the Kingdom's provinces;

* The name of the Authority was changed pursuant to Council of Ministers Resolution No. 253, dated November 1, 2022 (see Appendix).



- h) develop the National Frequency Spectrum Plan in coordination with relevant entities and refer it to the Ministry in preparation for its submission to the Council of Ministers;
- i) propose fees for the use of frequencies designated for various uses, refer the proposed fees to the Ministry to be agreed upon by the Minister and the Minister of Finance and National Economy, and submit the same to the Council of Ministers;
- j) protect the interests of the users of public telecommunications and Internet services; monitor the performance of the entities licensed to provide such services; take the measures necessary to ensure the compliance of said entities with license terms and conditions, including the type and quality of provided services; and develop new and innovative services;
- k) propose laws relating to the telecommunications sector and amendments thereto; consider sector-related issues raised by concerned parties, particularly users and licensed operators, including disputes related to interconnection and access; and take the necessary decisions within its powers regarding such issues;
- l) ensure that users and licensed operators perform their duties without undermining public interest;
- m) promote research and development in the telecommunications sector and promote the upgrading of telecommunications networks and services;
- n) set the bases for determining the fees for telecommunications services as required for competition;
- o) approve the general requirements governing the work of licensed operators;
- p) allocate the frequency bands designated for civil and commercial uses and ensure their effective use;
- q) develop, manage, and supervise the National Numbering Plan;
- r) promote efforts aiming to develop business practices, and develop performance metrics for different services in the telecommunications sector and monitor compliance therewith;
- s) coordinate with the Ministry regarding representing the Kingdom in relevant local, regional, and international bodies in the telecommunications sector; and
- t) any other duties assigned thereto under laws and regulations.

Article 4

1. The Commission shall have a Board of Directors comprising the Minister, as chairman, and the following members:
 - a) Governor of the Commission, Vice-Chairman.
 - b) A representative from the Ministry of Post, Telegraph, and Telephone.
 - c) A representative from the Ministry of Finance and National Economy.
 - d) A representative from the Ministry of Commerce.
 - e) A representative from King Abdulaziz City for Science and Technology.
 - f) Three members representing the private sector nominated by the Minister and appointed pursuant to a decision by the Council of Ministers.
2. Remuneration for attending Board meetings shall be determined pursuant to a decision issued by the Council of Ministers.



Article 5

The Board of Directors is the Commission's highest authority. The Board shall oversee the Commission's management and the conduct of its affairs, and shall set its general policy. For such purpose, the Board shall have the full range of powers, especially the following:

- a) Approving the Commission's internal, financial, administrative, and technical regulations.
- b) Determining the fees charged by the Commission for any work or service provided to operators and the like in accordance with the Law.
- c) Approving the issuance of licenses falling within the Commission's jurisdiction.
- d) Approving the National Numbering Plan and supervising its implementation.
- e) Approving the Commission's action plan and operational plans in alignment with the general plan of the State.
- f) Approving the purchase and sale of real estate to achieve the purposes of the Commission.
- g) Approving the Commission's draft budget, final accounts, and annual report as well as the auditor's report in preparation for submission of the same in accordance with the Law.
- h) Concluding all types of agreements and contracts within the limits of the powers of the Board, and authorizing officials of the Commission to conclude the same.
- i) Forming committees and granting them the powers necessary to perform the duties assigned thereto.
- j) Approving the salary scale of Commission employees who are subject to the Labor Law.
- k) Overseeing the Commission's technical, administrative, and financial activities.

Article 6

- 1. Board meetings shall be held at the Commission's headquarters and may be held at another location within the Kingdom, when necessary.
- 2. The Board shall convene upon an invitation by its Chairman at least once every three months, and when necessary or if requested by at least five members. The invitation shall include the meeting agenda. Board meetings shall be valid if attended by a majority of the members, including the Chairman or Vice-Chairman. Board decisions shall be passed by the majority vote of attending members. In case of a tie, the chairman of the meeting shall have the casting vote.
- 3. Board deliberations and decisions shall be recorded in minutes signed by the chairman and attending members. Decisions concerning operators, service providers, manufacturers and distributors of devices, or users shall be published in the Official Gazette and at least two daily newspapers, provided that such publication does not prejudice public interest or business confidentiality. The Governor shall directly communicate such decisions to relevant entities using the appropriate means.
- 4. A Board member may not vote by proxy. An objecting member may record his objection and the grounds therefor in the meeting minutes.
- 5. A member may not disclose any confidential information relating to the Commission he becomes privy to by virtue of his membership in the Board.
- 6. The Board may invite any person to attend its meetings, in a non-voting capacity, to benefit from his knowledge and expertise.



Article 7

In performing its tasks and duties, the Commission may seek the assistance of specialized entities, academic or technical institutions, or competent advisors to carry out certain tasks and duties. The Commission may also cooperate and consult with ministries, authorities, or other government agencies as it deems appropriate.

Article 8

The Commission shall have a Governor at the rank of grade “Excellent” appointed by a royal order upon the Minister’s nomination. The Governor shall be the executive officer of the Commission. His responsibilities shall be within the limits of this Statute and pursuant to Board decisions. The Governor shall exercise the following powers and duties:

- a) Overseeing preparations for Board meetings.
- b) Monitoring the implementation of Board decisions.
- c) Overseeing the preparation of the Commission’s draft budget, draft final accounts, and annual report, and presenting the same to the Board.
- d) Supervising the employees of the Commission in accordance with his powers and as per the regulations.
- e) Issuing the Commission’s disbursement orders in accordance with the approved annual budget.
- f) Submitting to the Board periodic reports on the Commission’s work, activities, and achievements.
- g) Proposing the Commission’s plans and programs and overseeing their implementation upon the approval of the Board.
- h) Representing the Commission in its relations with other entities and before the judiciary. The Governor may delegate others to perform said duty.
- i) Delegate certain powers and duties to other officials in the Commission.

Article 9

The Governor of the Commission shall have deputies appointed pursuant to a Board decision upon the nomination of the Governor. Deputy governors shall assume the duties and powers assigned to them by the Governor within the limits of this Statute.

Article 10

The Commission’s financial resources shall consist of the following:

- a) Allocations of the fees collected by the State for licenses issued to operators.
- b) Fees collected by the Commission for the work and services provided in accordance with this Statute.
- c) Fines collected in accordance with the Law.



Article 11

The Commission's funds shall be deposited into its account with the Saudi Arabian Monetary Authority. Disbursement from such funds shall be in accordance with the Commission's approved budget. Any surplus funds at the end of the fiscal year, except for the funds needed to finance future projects approved in the annual budget or to meet legal obligations, shall be transferred to the State treasury into the current account of the Ministry of Finance and National Economy.

Article 12

The Commission shall collect fees for commercially-provided services, the use of frequencies, and the issuance and renewal of licenses, and shall transfer such fees to the State treasury into the current account of the Ministry of Finance and National Economy.

Article 13

Commission imports shall be exempt from customs duties in accordance with applicable rules relating to the imports of public corporations.

Article 14

The fiscal year of the Commission shall be the same as the fiscal year of the State. As an exception, the first fiscal year of the Commission shall commence on the date this Statute enters into force.

Article 15

Except for the Governor, the Labor Law and the Social Security Law shall apply to the employees of the Commission.

Article 16

The Governor shall, within 90 days from the beginning of each fiscal year, submit an annual report to the Minister, upon the Board's approval, in preparation for its submission to the President of the Council of Ministers. Such report shall include the Commission's achievements for the past year assessed against the general development plan as well as any challenges encountered and proposals for improvement.

Article 17

Without prejudice to the right of the General Auditing Bureau to monitor the Commission's accounts, the Board shall appoint an external auditor, or more, of natural or legal personality, licensed to practice in the Kingdom, and shall determine his remuneration. In case of multiple auditors, they shall be jointly and severally liable before the Commission for their work. The auditor's report shall be submitted to the Board and the General Auditing Bureau shall be provided with a copy thereof.

Article 18

This Statute shall repeal any provisions conflicting therewith.



Article 19

This Statute shall be published in the Official Gazette and shall enter into force from the date of its publication.



Appendix

Amendments

July 21, 2003 (Jumada I 21, 1424H)

Council of Ministers Resolution No. 133 provides for the following:

- Transferring the duties relating to information technology to the Saudi Communications Commission and amending its name to be the “Communications and Information Technology Commission”.
- Amending the Statute of the Saudi Communications Commission in light of the amendment made to its name and adding the following information technology duties to the duties mentioned in the Statute:
 1. Executing approved policies, plans, and programs to develop information technology, and setting the appropriate procedures therefor.
 2. Proposing laws relating to information technology and amendments thereto, and seeking the approval of such laws and amendments by the competent agencies.
 3. Proposing the conditions related to Universal Service and Universal Access.
 4. Issuing necessary licenses in accordance with relevant laws and conditions.
 5. Following all developments and updates in the field of information technology and benefitting therefrom.
 6. Achieving a systematic expansion of information technology infrastructure in coordination with relevant government and private agencies.
 7. Promoting investment and manufacturing in information technology services and developing the workforce thereof.
 8. Setting the general plan for information technology upon coordination with relevant agencies in preparation for its approval.
 9. Coordinating with government agencies on the measures necessary for e-government transformation.
 10. Coordinating with government and private agencies on the measures necessary for e-commerce.
 11. Coordinating with relevant agencies on the technology necessary for establishing databases at competent agencies.
 12. Protecting the interests of the users of information technology services.
 13. Monitoring and encouraging government efforts relating to information technology.
 14. Holding conferences and symposia relating to information technology, and participating in relevant conferences and symposia within the Kingdom and abroad.



October 30, 2018 (Safar 21, 1440H)

Council of Ministers Resolution No. 120 provides for the following:

- Amending Article 4(1) to read as follows:

"1. The Commission shall have a Board of Directors comprising the Minister, as chairman, and the following members:

 - a) Governor of the Commission, Vice-Chairman.
 - b) A representative from the Ministry of Communications and Information Technology.
 - c) A representative from the Ministry of Finance.
 - d) A representative from the Ministry of Commerce and Investment.
 - e) A representative from King Abdulaziz City for Science and Technology.
 - f) A representative from the Presidency of State Security.
 - g) Three members representing the private sector nominated by the Minister and appointed pursuant to a decision by the Council of Ministers".

November 1, 2022 (Rabi' II 7, 1444H)

Council of Ministers Resolution No. 253 provides for the following:

- Amending the name of the "Communications and Information Technology Commission" to be the "Communications, Space, and Technology Commission".

December 24, 2024 (Jumada II 23, 1446H)

Council of Ministers Resolution No. 430 provides for the following:

- Amending Article 1 as follows:
 1. Deleting the definition of "Law".
 2. Adding the following definition: "**Sectors relevant to the Commission:** Communications, space, and technology, including digital content platforms".
- Amending Article 3 to read as follows:

"The Commission shall undertake all tasks and functions related to the regulation and supervision of the sectors relevant to the Commission, including the following:

 1. Propose national and sectoral policies; develop plans, policies, and programs relevant to the sectors relevant to the Commission; propose amendments thereto; implement approved plans, policies, and programs in accordance with its assigned tasks; and complete necessary procedures in this regard, provided that the Communications and Information Technology Law is implemented with regards to matters related to the communications and information technology sectors.
 2. Regulate all matters related to the markets and technologies of the sectors relevant to the Commission, and relevant services, uses, and activities, and all matters related to operational safety aspects, and the governance of licensees and service providers as needed, to achieve the objectives of the regulations related to the Commission's jurisdiction.
 3. Review the policies, plans, standards, and technical requirements proposed by the Saudi Space Agency which are necessary for the development of the civil space sector, and submit what it deems appropriate for completion of statutory procedures.



4. Issue licenses and permits, and register entities and individuals related to the sectors relevant to the Commission, in accordance with the relevant laws, regulations, and decisions.
5. Endeavor to protect the interests of users which are related to the services of the sectors relevant to the Commission and monitor the performance of licensees, registrants, and permit holders.
6. Enhance efforts aimed at developing work methods and establish performance measurement standards for various services in the sectors relevant to the Commission.
7. Develop the regulatory and technical requirements necessary for the development and implementation of the infrastructure of the sectors relevant to the Commission and the requirements for its operation, and seek to achieve the organized expansion of its basic infrastructure, and provide it to its users effectively and reliably, and encourage reliance on market forces in providing services in the sectors relevant to the Commission.
8. Approve, announce, promote, amend, and cancel tariffs for the services of the sectors relevant to the Commission, where applicable.
9. Encourage local and international investment in the sectors relevant to the Commission, and encourage participation therein, in coordination with the competent authorities, provided that the Communications and Information Technology Law is implemented with regards to matters related to the communications and information technology sectors.
10. Prepare and encourage research, development, and innovation in the sectors relevant to the Commission, in cooperation with relevant entities, and support and develop capabilities and skills and disseminate statistics in those sectors, provided that the Communications and Information Technology Law is implemented with regards to matters related to the communications and information technology sectors.
11. Establish specialized academies within the sectors relevant to the Commission, and complete the necessary procedures.
12. Issue the necessary regulations, rules, controls, regulatory frameworks, guides, resolutions, and instructions regarding the sectors relevant to the Commission, and the necessary controls for the protection of infrastructure, and ensure business continuity, and follow up on implementation and compliance.
13. Encourage efforts that enhance reliance on emerging digital technologies and digital transformation in the Kingdom, and promote and develop technology and innovation in the sectors relevant to the Commission, and maximize their utilization to support the adoption of modern and innovative business models, and develop emerging technologies, and coordinate in this regard with the relevant authorities.
14. Prepare the National Radio Spectrum Plan, in coordination with the relevant authorities, and submit it for approval in accordance with the statutory procedures.
15. Organize and distribute frequencies at the national level for various radio services; license frequencies for all users in the Kingdom; coordinate internationally to ensure the compatibility of frequencies with international regulations and rules; monitor the use of the radio spectrum; and address harmful radio interference.
16. Propose the fees for the use of frequencies and submit the same in accordance with the statutory procedures.
17. Develop the basis for the fees for services provided by the sectors relevant to the Commission in accordance with competition standards and relevant regulations.



18. Propose laws and regulations for the sectors relevant to the Commission, and submit them in accordance with the statutory procedures; draft regulations and rules for the communications and information technology sectors shall be submitted to the Ministry in accordance with the Communications and Information Technology Law.
 19. Encourage, enhance, and protect fair competition in the sectors relevant to the Commission.
 20. Develop standard and technical specifications for technologies and devices in the sectors relevant to the Commission; develop standard and professional tests for them; and coordinate with the relevant authorities in this regard.
 21. Establish and manage national records for the sectors relevant to the Commission in accordance with the relevant regulations and rules.
 22. Enhance and improve the reliability of the Internet infrastructure and services within the Kingdom.
 23. Hold conferences and seminars related to the sectors relevant to the Commission, in accordance with the statutory procedures.
 24. Represent the Kingdom in local, regional, and international bodies, conferences, and forums related to the sectors relevant to the Commission, in accordance with the statutory procedures; representation of the Kingdom in matters related to the communications and information technology sectors shall be in accordance with the Communications and Information Technology Law.
 25. Coordinate with the relevant authorities regarding the technologies that must be adopted by the competent authorities.
 26. Any other task or function assigned thereto in accordance with the relevant regulations and resolutions".
- Amending Article 4 to read as follows:

"The Commission shall have a board of directors chaired by the Minister and comprising the following members:

 - a) A representative from the Ministry of Finance.
 - b) A representative from the Ministry of Investment.
 - c) A representative from the Ministry.
 - d) A representative from the Presidency of State Security.
 - e) A representative from the General Commission of Civil Aviation.
 - f) The Governor.
 - g) Three members from the private sector nominated by the Minister; their appointment shall be pursuant to a decision by the Council of Ministers. The term of membership of each of them shall be three years, renewable once.

The rank of representatives of government agencies shall not be lower than Grade Excellent or its equivalent".



- Amending Article 5 as follows:
 1. Amending paragraph (b) to read as follows: "Determining the fees charged by the Commission for any work or service provided in accordance with the regulations related to its jurisdiction".
 2. Amending paragraph (c) to read as follows: "Approving the license requirements and classifications that fall within the Commission's jurisdiction".
 3. Deleting paragraph (i).
 4. Adding the following text to the end of the Article:

"In exercising its powers and jurisdiction, the Board may form standing or ad-hoc committees from its members or others, and entrust thereto such tasks and powers as it deems appropriate. Such committees may seek the assistance of whomever they deem appropriate to perform the tasks entrusted thereto. The formation decision of each committee shall specify its chairman, members, and functions. The Board may delegate some of its powers to its chairman or the governor or whomever it deems appropriate from its members or the Commission's employees, as dictated by public interest and the requirements of the Commission's conduct of business".
- Amending Article 8 as follows:
 1. Adding paragraph (j) to read as follows: "Issuing the necessary decisions to implement the provisions of this Statute and the decisions issued by the Board in accordance with the powers vested therein".
 2. Adding paragraph (k) to read as follows: "Signing agreements, protocols, and contracts following the Board's approval, in accordance with the statutory procedures".
 3. Adding paragraph (l) to read as follows: "Contracting for implementing works, services, and the like, in accordance with the regulations and powers delegated to him by the Board".
- Amending Article 10 to read as follows:

"The financial resources of the Commission shall consist of the following:

 - a) Funds allocated to the Commission from the fees that the State receives from the licenses issued by the Commission.
 - b) The fees that the Commission collects for the works and services it provides in accordance with this Statute.
 - c) Proceeds from the fines imposed under the Communications and Information Technology Law.
 - d) The fees that the Commission collects for allocating and managing numbering resources, radio spectrum resources, Saudi domain names, and technical identifiers.
 - e) Any grants or subsidies provided by the State.
 - f) Funds obtained from the utilization of its facilities, returns on the investment of its funds and assets, and the proceeds from their sale in accordance with the statutory procedures.
 - g) Grants, gifts, aid, donations, bequests, and endowments accepted by the Board in accordance with the statutory procedures.
 - h) Any other resources approved by the Board not inconsistent with the laws and instructions".